NEVER NYAKANE

AND

LUCIA NYAKANE

AND

PORTIA NYAKANE

Versus

HELEN MAUREEN MUSHORE

AND

WISDOM CHITURA

AND

CITY OF BULAWAYO

AND

ASSISTANT MASTER OF THE HIGH COURT

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 8 JULY, 17 JULY AND 21 AUGUST 2026

Civil trial

K. Ncube, for the plaintiffs
M. Ndlovu, for the 1st and 2nd defendants
No appearance for the 3rd and 4th defendants

KABASA J: The plaintiffs sued the 1st and 2nd defendants and sought the following relief:-

"1. That the agreement between the 1st and 2nd defendants is hereby declared to be of no force and effect on the grounds that the agreement is illegal and invalid.
2. The 2nd defendant shall give vacant possession to the plaintiffs of the property known as U28 Mzilikazi Bulawayo, within 7 days on him (sic) failing which the Sheriff or his lawful deputy be empowered to evict him.
3. The costs of the action will be borne by the 1st defendant on a legal practitioner

and client scale."

The genesis of the claim, as elaborated in the declaration, is that the plaintiffs are the late Joyce Nyakane's grandchildren "Joyce." Joyce died on 5 March 1996 and had rights title and interest in the property known as U28 Mzilikazi. She had always expressed the wish that this property be for the benefit of generations to come. After her death, Dennis Nyakane, Joyce's son was appointed executor dative. Dennis died on 4 October 2015 and 1st defendant, Dennis's daughter was appointed executrix of his estate. She obtained a S120 of the Administration of Estates Act [Chapter 6:01] Authority from the 4th defendant and sold the property to the 2nd defendant. The property did not belong to Dennis and the plaintiffs have a real and substantial interest as beneficiaries of the late Joyce's estate. The sale of the property has no legal force or effect and must therefore be vacated and vacant possession be given to the plaintiffs.

The first and second defendants' pleas are almost identical. The import of which is that after Joyce's death, the estate was registered. Dennis was the executor dative, the property was awarded to Dennis and the estate under DRBY 673/10 was wound up and duly confirmed on 2nd February 2011. Dennis subsequently died and his estate was registered under DRB 831/15. The 1st defendant, Dennis's daughter obtained a S120 Authority to sell with the consent of the beneficiaries of Dennis's estate. The property was sold to the 2nd defendant.

The plaintiffs' contention is that Dennis fraudulently awarded the property to himself as he was not the only beneficiary. The 1st defendant in turn had no right to sell the property as it did not form part of Dennis's estate.

The following issues were then referred to trial:-

1. Whether the plaintiffs have *locus standi* to sue the defendants.
2. Whether the plaintiffs' claim under the estate late Joyce Nyakane is prescribed.
3. Whether 1st defendant can legitimately alienate rights, title and interest to the property known as U28 Mzilikazi Township Bulawayo without the plaintiffs' consent.

4. Whether the plaintiffs are entitled to an order for the eviction of the 2nd defendant from U28 Mzilikazi Township, Bulawayo.

On the date the trial was supposed to commence both counsel agreed that there were questions of law which the court had to determine first. That determination would then direct how the matter was to proceed. The parties therefore agreed to file heads of argument motivating their respective arguments and allow the court to determine the issues based on the papers so filed.

This judgment is therefore concerned with these pre-trial questions of law.

The defendants' submissions

Counsel for the defendants' contention is that the plaintiffs cannot seek to undo that which was administratively done and concluded without first seeking the re-opening of the estate or the review of the 4th defendant's decision which allowed the sale of U28 Mzilikazi.

The estate winding up process was finalised and the account duly confirmed. The subsequent S120 Authority which authorized the sale of the property was not challenged and the 1st defendant's actions were sanctioned by such authority. All other subsequent acts were predicated on that administrative process which is extant.

Joyce's estate was finalised and confirmed in 2011. The plaintiffs have not sought to have the estate re-opened but seek to have relief which can only come as a consequence of a successful re-opening of Joyce's estate.

The plaintiffs therefore lack *locus standi* as they lack the legal right to bring the action. Counsel relied on *Makarudze & Anor* v *Rungu & Ors* HH 8-15 where the court said:-

> "*locus standi in judicio* refers to one's right, ability or capacity to bring legal proceedings in a court of law. One must justify such right showing that one has a direct and substantial interest in the subject matter of the action which could be prejudicially

affected by the judgment of the court."

This articulation of *locus standi* is also found in the case of *Anabas Services (Pvt) Ltd* v *Minister of Health & 2 Ors* HB 21-03.

The plaintiffs therefore lack *locus standi* as they cannot assume legal interest by virtue of the expectation they had to benefit from their grandmother's benevolence, so counsel argued.

Counsel for the plaintiffs held a different view and hereunder is counsel's argument with regards to *locus standi*.

Plaintiffs' Submissions

Counsel for the plaintiffs' argument is that U28 Mzilikazi belonged to Joyce. The plaintiffs and 1st defendant are Joyce's grandchildren. Joyce's estate was closed on 2 February 2011 and it is that estate the plaintiffs have interest in.

Counsel relied on *Ndlovu* v *Marufu* HH 450-15 where the court said:-

> "It is trite that *locus standi* exists where there is direct and substantial interest in the right which is the subject matter of the litigation and outcome thereof. A person who has *locus standi* had a right to sue which is derived from the legal interest recognized by law." (See also *Zimbabwe Stock Exchange* v *Zimbabwe Revenue Authority* 2006 (1) ZLR 181)

The plaintiffs are Joyce's grandchildren and S68 F(h) of the Administration of Estates Act recognizes inheritance by the children of the deceased and any of their descendants per stirpes. Inheritance by a deceased person's descendants was articulated by MWAYERA J (as she then was) in Re Estate Late Bellia Mhlanga HH 816-17. See also *Rotmaskov & Anor* v *Heiss* 89 MD 63 where the per stirpes principle was enunciated.

I find counsel for the plaintiffs' argument not only attractive but a correct articulation of the legal position.

Once it is accepted that the plaintiffs are taking issue with the estate of the late Joyce, it follows that their interest derives from their status as Joyce's grandchildren. Dennis who died in 2015 was Joyce's son and father to 1st defendant. The plaintiffs are children of Dennis's sibling(s) and if their parents pre-deceased their grandmother Joyce, they are entitled to whatever share these parent(s) were to get from their mother's estate.

As MWAYERA J (as she then was) stated in the Bellina Mhlanga case (supra)

> "The general meaning of the per stirpes principle is not distorted by the estate falling under customary or general law regime. What is pivotal is the meaning of the per stirpes principle. According to the *Advanced Learners Oxford Dictionary,* it means acquisition of inheritance by a deceased person's descendants in equal shares."

The issue however is who the plaintiff's parent is. They can only inherit per stirpes if their parent, who is Joyce's child pre-deceased Joyce. If not, it would be Joyce's surviving children who would have the right to inherit from their mother's estate.The situation would have been different if the plaintiffs' issue was with Dennis's estate. This is so because Dennis was an uncle and so the plaintiffs would not be beneficiaries of his estate. Dennis's children would be the beneficiaries.

The plaintiffs describe themselves as the ultimate beneficiaries. To my mind such a description would apply to an only child in an intestate succession whose parents are both deceased. Joyce had 5 children, only Morris pre-deceased her. Three of the children died well after Joyce, in 2007, 2009 and 2013 and each one left 2 children. It follows therefore that a 5th child of Joyce is still alive and that child is the one who would have *locus standi* to bring litigation concerning Joyce's estate. The plaintiffs are not Morris' children and they do not claim to be Morris' children. They argue that 1st defendant is also a grandchild like them as their fathers were brothers but 1st defendant is Dennis' daughter and therefore a beneficiary of Dennis' estate. Her position is therefore different from the plaintiffs who seem to derive some sense of entitlement from what they say Joyce used to tell them regarding the only asset she had, that is the house, U28 Mzilikazi. It is therefore correct as submitted by counsel for the 1st and 2nd defendants, that the plaintiffs regard themselves as "ultimate beneficiaries" by virtue of an expectation borne out of what they allege Joyce had said regarding the property in issue. It is not so much about what Joyce supposedly said during her life time but what inheritance

per stirpes entails.

The plaintiffs therefore have no direct and substantial interest in the administration of the estate of the late Joyce and are therefore not clothed with the requisite *locus standi*. One cannot just state that they have an interest, it must be a legally recognized interest, otherwise the courts would be inundated with litigation by people who simply believe they are entitled to something when they are legally not so entitled.

The resolution of the question of locus standi is therefore in the defendants' favour. When a litigant lacks the requisite *locus standi*, what purpose does it serve to go through a trial only to pronounce that such litigation ought not to have been brought by people who lack such *locus standi.*

This however does not mark the end of the matter. Counsel for the plaintiffs took issue with the fact that the impropriety of seeking to vacate that which was done administratively when Joyce's estate was wound up and the account confirmed in 2011 is not one of the issues identified and referred to trial. It would appear counsel forgot that the parties agreed that there were questions of law which had to be resolved first and could effectively dispose of the matter without going into the merits. A question of law can be raised at any time and so I find nothing amiss in counsel for the defendants' raising of this issue.

Reference was also made to the fact that there was a previous application which sought to dismiss the plaintiffs' claim for being frivolous and vexatious but such application failed with the court flagging issues which possibly lend credence to a possible fraud in the manner in which Joyce's estate was administered. The fact is this was an interlocutory application which did not necessarily ventilate the issue I have to decide on with regards to the relief being sought by the plaintiffs.

In essence the plaintiffs are inviting the court to set aside the sale concluded between the 1st and 2nd defendants, evict the 2nd defendant from the property and give the plaintiffs vacant possession of the property.

The question is, what process has been initiated which allows the court to literally ignore the fact that Joyce's estate was wound up and the distribution account duly confirmed in 2011? It is that confirmed distribution account which awarded the property to Dennis and at his death, to his beneficiaries, who excluded the plaintiffs, which beneficiaries consented to the sale of the property resulting in the issuance of the S120 Authority.

I turn now to the parties' submissions as regards the 2nd question of law. Can the court deal with the 'fruit' of a process without dealing with the root of the tree which produced that fruit?

Defendants' Submissions

Mr. Ndlovu for the defendants' contention is that the plaintiffs cannot seek to ignore a completed administrative process and seek a relief which in essence ignores the end result of that process without engaging with it, have it set aside on the basis of fraud and then resultantly have the process re-done, which would, if successful, acknowledge them as beneficiaries and have them share Joyce's property.

The estate of the late Joyce was finalised and the executor retired. There is no estate to talk about. If there are issues located in that finalised and closed estate which must be ventilated, it stands to reason that such estate must be re-opened and any remedial action done following such re-opening.

Plaintiffs' Submissions

Counsel's argument is that the plaintiffs seek a declaratur that the 1st and 2nd defendants' agreement is null and void and of no legal force and effect. They therefore seek 2nd defendant's eviction and that they be given vacant possession of the property.

Counsel further argues that the 1st and 2nd defendants did acts which prejudiced the

plaintiffs after Joyce's estate was closed in 2011. If they were able to do that without re-opening the estate, they cannot be heard to argue that the plaintiffs cannot seek to get the relief they want when the estate is closed. They cannot reprobate and approbate.

Analysis of the parties' arguments

Where an estate has been wound up and confirmed, the executor is retired. The property then vests in whomsoever has been awarded such property.

In *Muchiyani & Ors* v *Estate Late Ema Mudawini & Ors* HH 492-17 CHITAKUNYE J (as he then was) where there were allegations of fraud and the court found such fraud proved, reversed all the transactions which had followed the fraudulent actions. What is important to note however is that the aggrieved parties sought the re-opening of the estate and were able to prove fraud. The court therefore set aside the Letters of Administration, the consent to transfer issued by the Master and ordered the reversal of the transfer of the property from the one who had fraudulently obtained such transfer with the property reverting to the name of the deceased. The Master was directed to reconvene an edict meeting and appoint an independent executor.

The effect of the court's order per CHITAKUNYE J was to uproot the roots of the process which was afflicted by fraud and have the process re-done curing the fraudulent conduct in the process.

I would say the current matter is almost on all fours with the *Mudawini* case (supra). If Dennis committed a fraud which saw him awarding the property to himself which property was then sold to the 2nd defendant, the cure lies in the re-opening of Joyce's estate, the appointing of an executor for that estate and the fresh administration of that estate would then rid it of the taint of fraud. This, of course, can only materialise if the plaintiffs or whoever has the requisite *locus standi*, are able to prove fraud in the manner in which Joyce's estate was administered. The surviving child of Joyce's 5 children would have such. Betty, who was one of Joyce's 5 children before she died in 2013, tried to challenge the administration of her mother's estate but her efforts were in vain, as the Master had already confirmed the account and the executor

retired.

Even if the plaintiffs were to succeed, they cannot possibly seek that they be given vacant possession of U28 Mzilikazi as they would not be the only beneficiaries of Joyce's estate.

Whilst I agonized over the procedure the parties chose to adopt, not by way of exception or special plea but the raising of preliminary points in an action matter, I decided to proceed after asking the question "if the trial proceeds and evidence is led and it is shown that there was fraud, can the court merely address the tail end of the process of winding up Joyce's estate without having the estate re-opened so the award of Joyce's property follows due process? I found such a scenario untenable and so was persuaded to allow the parties to proceed in the manner they agreed on.

I was therefore persuaded by counsel for the defendants' argument and therefore agree that the plaintiffs cannot seek to "prune the branches whilst insisting that the root remain undisturbed." Therein lies the incompetence of the action brought by the plaintiffs.

DISPOSITION

The points *in limine* which raised questions of law were in my considered view, properly taken and are dispositive of the matter.

Whilst ordinarily the success of preliminary points would result in the striking off of a matter the point of law which essentially is a pronouncement that the plaintiffs ought to have sought the re-opening of Joyce's estate for them to eventually, if successful in that re-opening, obtain the relief they seek in this action, coupled with their lack of *locus standi,* calls for a dismissal of the action and not a striking off.

With the upholding of these preliminary points, the plaintiffs' action must, inevitably, suffer a still birth.

In the result, I make the following order

The plaintiffs' claim be and is hereby dismissed, with costs.

Gill, Godlonton and Gerrans, 1st plaintiff's legal practitioners
Nozabelo Law Chambers, 1st and 2nd defendants' legal practitioners